

GUIDELINES COMPLIANCE TABLE

Guidelines on the procedures and policies, including the rights of clients, in the context of transfer services for crypto-assets under the Markets in Crypto Assets Regulation (MiCA) on investor protection (ESMA35-1872330276-2032)

The following competent authorities comply or intend to comply with ESMA's Guidelines on the procedures and policies, including the rights of clients, in the context of transfer services for crypto-assets under the Markets in Crypto Assets Regulation (MiCA) on investor protection (ESMA35-1872330276-2032).

		Competent authority	Complies or intends to comply	Comments
Member States				
AT	Austria	Financial Market Authority (FMA)	Yes	ESMA Guidelines and other Convergence Instruments – FMA Austria (English version) ESMA-Leitlinien und andere Konvergenzinstrumente - FMA Österreich (deutsche Version)
BE	Belgium	Financial Services and Markets Authority (FSMA)	Yes	Publication in French Publication in Dutch
BG	Bulgaria	Financial Supervision Commission (FSC)	Yes	https://www.fsc.bg/wp-content/uploads/2025/07/428.pdf
HR	Croatia	Financial Services and Markets Authority (FSMA)	Yes	HANFA - Obavijest subjektima nadzora o primjeni Smjernica o postupcima i politikama, uključujući prava klijenata, u kontekstu usluga

		Competent authority	Complies or intends to comply	Comments
				prijenosa kriptoomovine u skladu s Uredbom o tržištima kriptoomovine (MiCA) u pogledu zaštite ulagatelja (ESMA35-1872330276-2032)
		Central Bank of Cyprus (CBC)	Yes	Publication
CY	Cyprus	Cyprus Securities and Exchange Commission (CySEC)	Yes	https://www.cysec.gov.cy/CMSPages/GetFile.aspx?guid=95b235ec-ff5a-472b-8c4f-5d54f073340f
CZ	Czech Republic	Czech National Bank (CNB)	Yes	https://www.cnb.cz/cs/dohled-financni-trh/legislativni-zakladna/kryptoaktiva/metodicke-a-vykladove-materialy/ https://www.cnb.cz/en/supervision-financial-market/legislation/crypto-assets/methodological-and-interpretative-documents/
DK	Denmark	Finanstilsynet	Yes	No legislative publication.
EE	Estonia	Finantsinspektsioon	Yes	https://www.fi.ee/et/juhenid/investeerimine/euroopa-vaartpaberiturujarelevalve-suuniste-suunised-menetluste-ja-pohimotete-sealhulgas-klientide
ES	Spain	Comisión Nacional del Mercado de Valores (CNMV)	Yes	CNMV - ESMA/EBA Guidelines and recommendations

		Competent authority	Complies or intends to comply	Comments
FI	Finland	Finanssivalvonta (FSA)	Yes	https://www.finanssivalvonta.fi/en/publications-and-press-releases/supervision-releases/2025/the-european-supervisory-authorities-have-issued-a-number-of-guidelines-regarding-crypto-assets/
FR	France	Autorité des Marchés Financiers (AMF)	Yes	https://www.amf-france.org/fr/actualites-publications/actualites/crypto-actifs-lamf-applique-six-ensembles-dorientations-elaborees-par-les-autorites-europeennes-de
DE	Germany	Bafin	Yes	BaFin - MiCAR
EL	Greece	Hellenic Capital Market Commission (HCMC)	Yes	http://www.hcmc.gr/vdrv/elib/aa42bb70b-5dea-4698-a176-875c9ff53659-92668751-0
HU	Hungary	Magyar Nemzeti Bank (MNB)	Yes	https://www.mnb.hu/letolt es/4-2026-mica-kriptoeszkoz-atkuldesi-szolg-ajanlas.pdf
IE	Ireland	Central Bank of Ireland	Yes	The Central Bank of Ireland (CBI) does not publish any links to guidelines. However, the CBI's MiCAR webpage provides further information and links to ESMA websites related to the relevant documents.
IT	Italy	Commissione Nazionale per le Società e la	Yes	Avviso Consob del 30 aprile 2025 (1) - AREA PUBBLICA - CONSOB

		Competent authority	Complies or intends to comply	Comments
		Borsa (CONSOB)		
LV	Latvia	Latvijas Banka	Yes	https://likumi.lv/ta/id/360090-noteikumi-kas-papildina-kriptoaktivu-tirgus-darbibu-regulejosajos-normativajos-aktos-noteiktas-prasibas
LT	Lithuania	Bank of Lithuania	Yes	https://www.lb.lt/uploads/documents/docs/53114_120b910353e6fe6c03d28ffc020a7d72.pdf
LU	Luxemburg	Commission de Surveillance du Secteur Financier (CSSF)	Yes	: https://www.cssf.lu/fr/Document/circulaire-cssf-25-888/
MT	Malta	Malta Financial Services Authority (MFSA)	Yes	https://www.mfsa.mt/wp-content/uploads/2025/03/MiCA-Rulebook.pdf
NL	Netherlands	Autoriteit Financiële Markten (Authority for the Financial Markets)	Yes	-
PL	Poland			Non-compliance by default, pending designation by the Member State of the Competent Authority for the jurisdiction
PT	Portugal	Comissão do Mercado de Valores Mobiliários (CMVM)	Yes	Publication
RO	Romania			

		Competent authority	Complies or intends to comply	Comments
				Non-compliance by default, pending designation by the Member State of the Competent Authority for the jurisdiction
SK	Slovakia	National Bank of Slovakia (NBS)	Yes	https://nbs.sk/dohlad-nad-financnym-trhom/legislativa/legislativa/detail-dokumentu/usmernenia-esma-z-26-februara-2025-c-esma35-1872330276-2032-o-postupoch-a-politikach-vratane-prav-klientov-v-suvislosti-so-sluzbami-prevodu-kryptoaktiv-podla-nariadenia-o-trhoch-s-kryptoaktivami-tyk/ https://nbs.sk/en/dohlad-nad-financnym-trhom/legislativa/legislativa/detail-dokumentu/esma-guidelines-of-26-february-2025-no-esma35-1872330276-2032-guidelines-on-the-procedures-and-policies-including-the-rights-of-clients-in-the-context-of-transfer-services-for-crypto-asset/
SI	Slovenia	Securities Market Agency (SMA)	Yes	https://www.uradni-list.si/glasilo-uradni-list-rs/vsebina/2025-01-0604/sklep-o-uporabi-smernic-esma-o-postopkih-in-politikah-vkljucno-s-pravicami-strank-v-okviru-storitev-prenosa-kriptosredstev-v-skladu-z-uredbo-o-trgih-kriptosredstev-mica-za-zascito-vlagateljev

		Competent authority	Complies or intends to comply	Comments
SE	Sweden	Finansinspektionen (FI)	Yes	https://www.fi.se/sv/publicerat/nyheter/2025/fi-tillampar-riktlinjer-om-kryptotillgangar/

EEA EFTA States **

IS	Iceland	Central Bank of Iceland	No response	
LI	Liechtenstein	Finanzmarktaufsicht (FMA)	Yes	https://www.fma-li.li/de/aufsicht-regulierung/europaeische-aufsichtsbehoerden/guidelines
NO	Norway	Finanstilsynet	Yes	Retningslinjer fra ESMA om kryptoeiendeler (MiCA) - Finanstilsynet.no

* Please note that, in the interest of transparency, if a competent authority continues to intend to comply after the application date, it will be considered “non-compliant” unless (A) the guidelines or recommendations relate to a type of institution or instruments which do not currently exist in the jurisdiction concerned; or (B) legislative or regulatory proceedings have been initiated to bring any national measures necessary to comply with the guidelines or recommendations in force in the jurisdiction concerned.

**The competent authorities of the EEA States other than the Member States of the European Union are required to notify their compliance with ESMA’s guidelines or recommendations relating to a legal act that has been incorporated in the EEA Agreement. This compliance table reports on guidelines relating to Regulation (EU) 2023/1114, which has been incorporated in the EEA Agreement.

Notes

Article 16(3) of Regulation (EU) No 1095/2010 (the ESMA Regulation) requires national competent authorities to inform us whether they comply or intend to comply with each set of guidelines or recommendations we issue. If a competent authority does not comply or does not intend to comply it must inform us of the reasons. We decide on a case by case basis whether to publish reasons.

ESMA endeavours to ensure the accuracy of this document, however, the information is provided by the competent authorities and, as such, ESMA cannot accept responsibility for its content or any reliance placed on it.

*For further information on the current position of any competent authority, please contact that competent authority.
Contact details can be obtained from our website (www.esma.europa.eu).*